

Tentative Rulings for Department 503

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Tentative Ruling

Re: ***Mejia v. Poindexter Nut Company, Inc.***
Superior Court Case No. 23CECG03574

Hearing Date: August 13, 2026 (Dept. 503)

Motion: By Defendant Poindexter Nut Company, Inc.'s Counsel to be
Relieved as Counsel

Tentative Ruling:

To deny without prejudice. (Cal. Rules of Ct., Rule 3.1362.)

Explanation:

Counsel for defendant Poindexter Nut Company, Inc. ("Counsel") has moved to be relieved as counsel of defendant Poindexter Nut Company, Inc.

"A notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel - Civil (form MC-051)." (Cal. Rules of Ct., Rule 3.1362(a).) "Notwithstanding any other rule of court, no memorandum is required to be filed or served with a motion to be relieved as counsel." (*Id.*, Rule 3.1362(b).) "The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel - Civil (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (*Id.*, Rule 3.1362(c).) "The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel-Civil (form MC-053) and must be lodged with the court with the moving papers." (*Id.*, Rule 3.1362(e).)

Forms MC-051, MC-052, and MC-053 must be used for a motion to be relieved as counsel. Counsel did not use those forms. Accordingly, the motion to be relieved as counsel is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/10/2026.
(Judge's initials) (Date)